

25STCV38108 25STCV38108

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-10

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Case Number: 25STCV38108 Hearing Date: July 10, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 10, 2026 TRIAL DATE: March 14, 2028

CASE: Kimi Kim v. Taurino Aguilar, et al.

CASE

NO.: 25STCV38108

MOTION TO QUASH SERVICE OF
SUMMONS

MOVING

PARTY: Specially Appearing Defendant Antonio

Aguilar (erroneously sued as Toni Aguilar) in pro per

RESPONDING

PARTY(S): No

response on eCourt as of 07/07/26

TENTATIVE RULING:

Antonio

Aguilar's Motion to Quash Service of Summons is GRANTED.

Moving Party to give notice.

BACKGROUND

This is an action for ejectment.

DISCUSSION:

Aguilar moves to quash service of the summons and complaint. The Court grants the motion based on the undisputed evidence.

Legal
Standard

On a motion to quash service of the summons and complaint, the moving party must first present some admissible evidence, such as declarations or affidavits, to place the issue of minimum contacts before the Court. (School Dist. of Oskaloosa County v. Superior Court (1997) 58 Cal.App.4th 1126, 1131.) "When a motion to quash is properly brought, the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

Analysis

Aguilar contends that he was not properly served with process. Based on the undisputed evidence, the Court agrees.

The Proof of Service as to Aguilar filed January 12, 2026 states that Aguilar was personally served on December 30, 2025 at 3:00 PM at 1651 East 42nd Street Apt. 2, Los Angeles, CA, 90011. (Proof of Service. ¶¶ 3-5.) Aguilar states, under penalty of perjury, that he does not reside at this address and has not resided there since 2022. (Declaration of Antonio Aguilar ISO Mot. ¶¶ 2, 5.) Aguilar categorically denies having been personally served with the summons

and complaint. (Declaration of Antonio Aguilar ISO Mot. ¶ 3.) Kim did not file an opposition to this motion. Because Kim has not responded to the motion, she has failed to carry her burden to demonstrate that personal service was actually and properly effected.

CONCLUSION:

Accordingly, Antonio Aguilar's Motion to Quash Service of Summons is GRANTED.

Moving Party to give notice.

IT IS
SO ORDERED.

Dated: July 10, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.